SUBSIDIARY LEGISLATION 364.02

POLICIES OF INSURANCE (COMPOUNDING OF DUTY) REGULATIONS

4th June, 1982

LEGAL NOTICE 31 of 1982, as amended by Legal Notice 425 of 2007 and 68 of 2020.

Citation.

1. The title of these regulations is the Policies of Insurance (Compounding of Duty) Regulations.

Payment of duty.

2. (1) Subject to the provisions of these regulations, the Commissioner may authorise that the payment of duty on policies of insurance may be made by means of compounding.

(2) The total amount of duty paid in this manner shall never be less than the total which would have been paid had the duty been paid individually.

(3) Payment of the duty shall be made at such intervals as the Commissioner may determine.

Commissioner to control duty on policies of insurance.

3. The Commissioner shall exercise such control as he considers necessary in regard to the payment of the duty due on policies of insurance, the keeping of proper records of such policies and all other ancillary matters.

Penalties.
Amended by: L.N. 425 of 2007; L.N. 68 of 2020.

4. (1) Any person who -

(*a*) fails to abide with any requirement of the Commissioner issued pursuant to these regulations; or

(*b*) prevents or obstructs the Commissioner from exercising such control as he may deem necessary for the purposes of these regulations,

shall be liable to a penalty not exceeding one thousand and two hundred euro (€1,200.00) and to interest at the rate as prescribed by the Minister on any duty assessed by the Commissioner.

(2) The Commissioner may, at his discretion, remit or reduce any penalty incurred under subregulation (1).